CITY OF NEWPORT BEACH

NEWPORT BEACH ADU

ACCESSORY DWELLING UNIT ORDINANCE SUMMARY

Accessory Dwelling Units (ADU) and Junior Accessory Dwelling Units (JADU) are regulated by Newport Beach Municipal Code Sections 20.48.200 and 21.48.200. Ministerial review of all ADUs and JADUs will occur through building permit plan check. A Coastal Development Permit may also be required for properties within the Coastal Zone. *Please consult with a planner prior to submitting and ADU/JADU project.*

	JADU	ADU WITH SINGLE- OR MULTI-UNIT DEVELOPMENT			ADU WITH EXISTING MULTI-UNIT DEVELOPMENT
ADU Type	 **JADU[7]** *Conversion*[1] of an interior portion of an existing single-unit dwelling; or *new construction within* a proposed single-unit dwelling; or attached to an existing or proposed single-unit dwelling	 **INTERNAL[1,2,7]** *Conversion* of an interior portion of an existing single-unit or multi-unit dwelling, or an existing detached accessory building; or *new construction within* a proposed single-unit or multi-unit (2+) development	 **ATTACHED[1]** Construction of a new ADU *attached to* an existing or proposed single-unit or multi-unit dwelling	 **DETACHED,[7]** Construction of a new ADU as a *detached* accessory building	 **CONVERSION[7]** *Conversion* of an existing *non-habitable* (e.g., storage rooms, boiler rooms, passageways, attics, basements, or garages) portion of a multi-unit (2+) development
Zoning	Allowed on all residential and mixed zoned properties that are improved with a single-unit dwelling	Allowed on all residential and mixed zoned properties that are improved with a single-unit or multi-unit dwelling			Allowed on all residential and mixed zoned properties that are improved with *existing* multi-unit dwellings
Number of Units	One	One		Single-unit Development: One Existing Multi-unit Development: Up to eight, not to exceed the number of existing primary units New Multi-unit Development: Two	At least one and no more than 25% of the existing unit count in the multi-unit development
Allowed with Other ADU	May also provide single-unit ADU	May also provide JADU as part of a *single-unit dwelling*			No
Minimum Lot Size	None				
Minimum Size	Shall comply with California Building Code Section 1208 (Interior Space Dimensions)				
Maximum Size *(Square Feet)*	500	No limit	Studio/One-Bedroom = 850 Two Bedroom = 1,000		No limit
Maximum Height	Per base zone	Per base zone	Per base zone	16 feet[3]	N/A
Front Setback [4]	Per base zone				
Side Setback [4]	Per base zone	Per base zone	4 feet or base zone, whichever is less		Per Base Zone
Rear Setback[4]	Per base zone	Per base zone	4 feet (not abutting alley) or base zone, whichever is less		Per Base Zone

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ADU Type	**JADU**	**INTERNAL[1,2]**	**ATTACHED[1]**	**DETACHED**	**CONVERSION**
800 sf ADU Exception for Existing Development[5]	N/A		Application of floor area limit, site coverage limit, or front setback shall not reduce an ADU below 800 square feet		N/A
Walkout Basement FAL Exception	Floor area of ADU/JADU may be excluded from the allowable floor area limit when located below grade within a basement and specific criteria is met. See Section 20.48.200(F)(5) and 21.48.200(F)(5)				
Access	Exterior entrance required in all cases. JADUs may provide internal connection.				
Bathroom	May share with primary dwelling unit	Bathroom is required			
Kitchen	Efficiency[6]	Full kitchen, including fixed cooking appliance with outside exhaust.			
Parking	None	None	One per unit		None
Parking Exception	N/A		Parking waived for the ADU if the property is: 1) within ½ mile walking distance to transit; 2) within an architecturally or historically significant district; 3) on-street parking permits are required and not provided to the occupant of the ADU; 4) within one block of a car-share vehicle pick-up/drop-off location; or 5) when ADU is constructed in conjunction with a new single-unit or multi-unit dwelling not located in the coastal zone.		N/A
Garage/Carport Conversion	Allowed; Replacement parking required citywide	Allowed; Replacement parking required in the Coastal Zone	N/A		Allowed; Replacement parking required in the Coastal Zone
Deed Restriction	Prior to issuance of building permit, owner must record deed restriction (prepared by the City) noting the size of the unit, description of unit, prohibition on short term rentals, prohibiting the sale of the ADU/JADU, and specifying owner-occupancy requirement. Additional restrictions required in the Coastal zone.	N/A			
Owner-Occupancy	Owner shall live in either unit	N/A			
Short-Term Lodging	Short-term lodging is prohibited.				
Utility Connection	A separate utility connection is not required	The City may require a separate utility connection. (See Utilities Director 1/9/21 Memorandum for single water and sewer service allowances)			
Fire Sprinklers	Only required if fire sprinklers required and provided on primary unit.				
Separate Conveyance	ADUs and JADUs may not be sold separately[8]				

[1] Internal is either: 1) conversion of existing floor area within the envelope of an existing single-unit dwelling (including garage); or 2) development of an ADU within the footprint of a proposed single-unit or multi-unit dwelling (excluding garage) that complies with all applicable development standards. Construction of a new ADU that extends beyond the envelope of an existing single-unit or multi-unit dwelling or beyond the footprint of a proposed single-unit or multi-unit dwelling shall comply with the standards applicable to *Attached ADUs.*

[2] Conversions of existing accessory structures are permitted a 150 sq. ft. addition to accommodate ingress/egress. Conversions within principal structure not entitled to 150 sf addition.

[3] See NBMC Sections 20.48.200(F)(3) and 21.48.200(G)(3) for additional height allowances applicable to detached ADUs under certain circumstances.

[4] For conversion of existing enclosed floor area, garage, or carport, no additional setback required. For replacement of an existing enclosed structure, garage, or carport, no additional setback is required beyond the existing setback. Additional setback maybe required for coastal resource protection per IP.

[5] An ADU constructed concurrently with a new development shall comply with the total maximum allowed floor area limits, lot coverage limits, and front setbacks applicable to the property. In the case where the floor area, lot coverage, or front setbacks of existing development doesn't allow the development of an 800 sf ADU and no other compliant alternatives exist, then the ADU may exceed the floor area or lot coverage limits, and/or encroach into the front setback to the minimum extent necessary to accommodate the 800 sf ADU provided it meets all other applicable standards.

[6] An efficiency kitchen may include a basic plug-in cooking appliance such as hot plate or microwave. A sink, food preparation counter and storage cabinets of reasonable size required.

[7] Some standards may not apply to specific ADUs and JADUs outlined in Government Code Section 66323 and are subject to specific alternative requirements.

[8] ADU are allowed to be sold or conveyed separately from the primary residence to a qualified buyer by a qualified nonprofit corporation subject to affordability restrictions outlined in Government Code Section 66341.